

26SMCV02785 26SMCV02785

County: los-angeles
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TENTATIVE ruling

DEPARTMENT

207

HEARING DATE

September 28, 2026

CASE NUMBER

26SMCV02785

MOTION

Enforce Settlement

MOVING PARTY

Plaintiff Verbena WRC Lincoln, LP

OPPOSING PARTY

none

MOTION

This case arises from allegations of an unlawful detainer.

On May 20, 2026, Plaintiff Verbena WRC Lincoln, LP ("Plaintiff") brought suit against Defendant Golden Road Food Services, LLC ("Defendant") alleging a single cause of action for unlawful detainer.

Plaintiff now moves to enforce a settlement agreement between the parties. The motion is unopposed.

ANALYSIS

I.

Enforce Settlement

"Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement." (Hines v. Lukes (2008)

167 Cal.App.4th 1174, 1182.) In

particular, Code of Civil Procedure section 664.6 provides that "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6.)

The

issue on a motion to enforce settlement agreement under Code of Civil Procedure section 664.6 is whether the parties entered into a valid and binding settlement agreement. (See Viejo v. Bancorp. (1989) 217 Cal.App.3d 200, 209, fn. 4 ["a court's power to make factual determinations under section 664.6 is generally limited to whether the parties entered into a valid and binding settlement agreement"]; see also Hines v. Lukes, supra, 167 Cal.App.4th at p. 1182 ["A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement"].)

In other words, the only issue before the court is whether an agreement exists concerning all of the material terms; not whether the agreement has been breached. (See Hines v. Lukes, supra, 167 Cal.App.4th at p. 1182 ["A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms"].) "If the

court finds that the parties failed to agree to all material terms, there is no enforceable settlement so the court must deny the motion for entry of judgment pursuant to a settlement." (Id. at p. 1185.)

Moreover, the Hines v. Lukes court stated: "The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to enter judgment pursuant to the terms of the settlement." (Hines v. Lukes, supra, 167 Cal.App.4th at pp. 1182–1183 [cleaned up].)

In support of the motion, Plaintiff advances a written Stipulation for Settlement signed by the parties on July 2, 2026 (by Defendant) and July 6, 2026 (by Plaintiff). (Ex. 1 to Truong Decl.)

The stipulation provides for Defendant to pay Plaintiff a total of \$99,991.43, comprised of back rent in the amount of \$97,142.35 plus \$2,849.08 in attorneys' fees. The first \$49,995.71 is due within five (5) days of full execution of the stipulation, and the remainder shall be paid in monthly installments of \$4,166.31. (Ex. 1 to Truong Decl. at ¶ 2-2.2.) In addition, Defendant is required to continue to make all regular monthly rent payments. (Ex. 1 to Truong Decl. at ¶ 2.3.)

Plaintiff further advances the Declarations of Kelly Weems and of Tiffany Truong. Weems declares as follows:

3. Unfortunately, Plaintiff never received any payments due pursuant to the Settlement. We provided wiring information and the address for payment to Defendant. I have checked on multiple times since the Settlement was signed and we did not receive any payment.

(Weems Decl. ¶

3.) Similarly, the Truong Declaration provides:

3. Unfortunately, Plaintiff never received any payments due pursuant to the Settlement and have failed to comply with the terms of the Settlement. I was in direct contact with Defendant's General Counsel, John Silvestri, to negotiate and sign the Settlement. Between July 6, 2026, and August 17, 2026, I was in contact with Mr. Silvestri on multiple occasions to coordinate payments due under the Settlement. Defendant's team represented that payment was made or coming via wire on multiple occasions, but it was never received by Plaintiff. I proposed on multiple occasions that a physical check be submitted if the wire transfer was apparently the problem, but my understanding is that Plaintiff never received one. My last email to Mr. Silvestri was on August 17, 2026, but I never received further information about any submissions of payment.

(Truong Decl.
¶ 3.)

Thus, the Court finds that Plaintiff has demonstrated entitlement to a judgment against Defendant in the amount of \$99,991.43, and Defendant has not opposed the motion to demonstrate otherwise.

II.
Attorneys' Fees & Costs

Paragraph
7.9 of the Settlement Agreement provides, "If any Party to this Stipulation commences a judicial proceeding to enforce any provision of this Stipulation or is required to defend a judicial proceeding commenced by any party to this Stipulation, the unsuccessful Party or parties shall pay to the prevailing Party or Parties all of his or its litigation costs, expenses and reasonable attorney's fees incurred in the action, including appellate and post-judgment proceeding." (Ex. 1 to Truong Decl. at ¶ 7.9.)

As
such, Plaintiff requests attorneys' fees and costs in the amount of \$885, representing 1.5 hours of attorney time at the hourly rate of \$550, totaling \$825, plus the \$60 filing fee for this motion.

(Truong Decl.

¶ 5.)

Therefore,

the Court finds Plaintiff's request for attorneys' fees and costs warranted.

Conclusion

For

the foregoing reasons, the Court grants Plaintiff's unopposed motion to enforce settlement, and will enter the proposed Order lodged on August 31, 2026 in conformity with the ruling.

Further,

the Court orders Plaintiff to lodge a proposed Judgment in conformity the ruling on or before October 9, 2026.

Further,

the Court vacates the Case Management Conference as moot and sets an Order to Show Cause re Entry of Judgment on October 16, 2026.

Plaintiff shall also provide notice of the

Order and Judgment, and file the notices with proofs of service forthwith.

DATED: September 28, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court